

V.
Treble Damages to
the Party grieved.

AND every person so offending shall likewise forfeit and loose unto the Party grieved by any thing done contrary to the true intent and meaning of this Law his trebble damages which he shall sustain and be put unto by meanes or occasion of any such Act or thing done the same to be recovered in any of His Majesties Courts of Record at Westminster by Action of Debt Bill Plaint or Informacion wherein no Essoine Protection Wager of Law Aid Prayer Priviledge Injunction or Order of Restraint shall be in any wise prayed granted or allowed nor any more then one Imparlance

VI.
Every Person
committed contrary
to this Act shall
have an Habeas
Corpus for the
ordinary Fees.

AND be it alsoe provided and Enacted That if any person shall hereafter be committed restrained of his Libertie or suffer imprisonment [by the Order or Decree of any such Court of Star Chamber or other Court aforesaid now or at any time hereafter having or pretending to have the same or like Jurisdiction power or authoritie to commit or imprison as aforesaid Or by the command or Warrant of the Kings Majestie his Heires or Successors in their owne Person or by the Command or Warrant of the Councell board or of any of the Lords or others of his Majesties Privy Councell'] That in every such case every Person so committed restrained of his libertie or suffering imprisonment upon demand or motion made by his Councell or other employed by him for that purpose unto the Judges of the Court of Kings Bench or Common Pleas in open Court shall without delay upon any pretence whatsoever for the ordinary Fees usually paid for the same have forthwith granted unto him a Writ of Habeas Corpus to be directed generally unto all and every Sheriffs Gaoler Minister Officer or other Person in whose custody the party committed or restrained shall be [and the Sheriffs Gaoler Minister Officer or other pson in whose custody the pty so committed or restrained shall be²] shall at the return of the said Writ & according to the command thereof upon due and convenient notice thereof given unto him [at the charge of the party who requireth or procureth such Writ and upon securitie by his owne bond given to pay the charge of carrying back the prisoner if he shall be remanded by the Court to which he shall be brought as in like cases hath beene used such charges of bringing up and carrying backe the prisoner to be alwaies ordered by the Court if any difference shall arise thereabout'] bring or cause to be brought the body of the said party so committed or restrained unto and before the Judges or Justices of the said Court from whence the same Writ shall issue in open Court and shall then likewise certifie the true cause of such his detainer or imprisonment and thereupon the Court within Three Court dayes after such return made and delivered in open Court shall proceed to examine and determine whether the cause of such commitment appearing upon the said return be just and legall or not and shall thereupon do what to justice shall appertaine either by delivering bailing or remanding the prisoner And if any thing shall be otherwise wilfully done or omitted to be done by any Judge Justice Officer or other person aforementioned contrary to the direction and true meaning hereof That then such person so offending shall forfeit to the party grieved his trebble damages to be recovered by such meanes and in such manner as is formerly in this Act limited and appointed for the like penaltie to be sued for and recovered

Cause of Detainer
certified by Sheriff,
&c. and thereupon
Court to proceed.

Default by Judge,
&c.

Damages.

VII.
To what Courts this
Act shall extend.

[PROVIDED alwaies and be it Enacted That this Act and the severall Clauses therein contained shall be taken and expounded to extend only to the Court of Star Chamber and to the said Courts holden before the President and Councell in the Marches of Wales and before the President and Councell in the Northern parts and alsoe to the Court commonly called the Court of the Dutchy of Lancaster holden before the Chauncellour and Councell of that Court And alsoe in the Court of Exchequer of the County Palatine of Chester held before the Chamberlaine and Councell of that Court And to all Courts of like Jurisdiction to be hereafter erected ordained constituted or appointed as aforesaid And to the Warrants and directions of the Councell board and to the commitments restraints & Imprisonments of any Person or Persons made commanded or awarded by the Kings Majesty his Heires or Successors in their owne person or by the Lords and others of the Privie Councell and every one of them

VIII.
Limitation of
Information, &c.

AND lastly Provided and be it Enacted That no person or persons shall be sued impleaded molested or troubled for any offence against this present Act unlesse the party supposed to have so offended shall be sued or impleaded for the same within two yeares at the most after such time wherein the said offence shall be committed.¹]

CHAPTER XI.

Rot. Parl. 16 Car.
p. 2. nu. 7.
1 Eliz. c. 1.

AN ACT for repeal of a branch of a Statute primo Elizabeth concerning Commissioners for causes Ecclesiasticall.

§ 18.

WHEREAS in the Parliament holden in the first yeare of the Reigne of the late Queene Elizabeth late Queene of England there was an Act made and established Intituled An Act restoring to the Crowne the ancient Jurisdiction over the State Ecclesiasticall and Spirituall and [aboshing³] all Forreign Power repugnant to the same In which Act amongst other things there is contained one Clause Branch Article or Sentence whereby it was Enacted to this effect Namely That the said late Queenes Highnes her Heires and Successors Kings or Queenes of this Realme should have full power and authoritie by vertue of that Act by Letters Patents under the Great Seale of England to assigne name and authorize when and as often as her Highnes her Heires or Successors should thinke meet and convenient and for such and so long time as should please her Highnes her Heires or Successors such Person or Persons being naturall born Subjects to her Highnes her Heires or Successors as her Majestie her Heires or Successors should thinke meet to exercise use occupie and execute under her Highnes her Heires and Successors all manner of Jurisdictions Priviledges & [Preheminence⁴] in any wise touching or concerning any Spirituall or Ecclesiasticall Jurisdiction within these her Realmes of England and Ireland or any other her Highnesse Dominions

¹ annexed to the Original Act in a separate Schedule.

² interlined on the Roll.

³ abolishing O.

⁴ Preheminence O.